

24STCV06620 24STCV06620

County: los-angeles

Division: Civil Law and Motion

Department: 730

Hearing date: 2026-07-14

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Case Number: 24STCV06620 Hearing Date: July 14, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

JESSICA

VALDIVIA,

Plaintiffs,

vs.

JACQUELINE SUZETTE, et al.

Defendants

Case No.:

24STCV06620

Hearing

Date:

July 14, 2026

[TENTATIVE]

ORDER GRANTING MOTION TO COMPEL RESPONSES
TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE

I.

BACKGROUND

On

March 18, 2024, Plaintiff ("Plaintiff") Jessica Valdivia filed a complaint against Defendants Jacqueline Suzette, Juan Carlos Menjivar, Alfonso Rene Solano Ruiz, and Matheson Tri-Gas, Inc., alleging cause of action for negligence, arising out of an alleged vehicle collision.

On

March 11, 2026, Defendant Matheson Tri-Gas, Inc. ("Defendant") filed the instant motion to compel Plaintiff's responses to Requests for Production of Documents, Set One ("RPDs"). Defendant also requests the Court impose sanctions of \$1,060.00. No opposition has been filed.

II.

LEGAL STANDARD

A

party must respond to interrogatories and requests for production within 30 days after service. (Code Civ. Proc., § 2031.260, subd. (a).) If a party to whom interrogatories and requests for production are directed does not provide timely responses, the requesting party may move for an order compelling responses to the discovery. (Code Civ. Proc., § 2031.300, subd. (b).)

"The

court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct." (Code Civ. Proc. § 2023.030, subd. (a).) Misuse of the discovery process includes: "(d) failing to respond or to submit to an authorized method of discovery." (Code Civ. Proc. § 2023.010, subd. (d).) Reasonable expenses under Code of Civil Procedure section 2023.030, subdivision

(a) include the time spent in researching and preparing the motion, as well as court time and travel time spent in connection with the motion. (Ghanooni v. Super Shuttle (1993) 20 Cal.App.4th 256, 262.)

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III.

DISCUSSION

a.

Requests for Production of Documents

On

December 5, 2025, Defendant served Plaintiff with written discovery consisting of Requests for Production of Documents, Set One. (Koumoulis Decl. ¶ 3, Exh. A.) Responses were due on February 26, 2026. (Ibid.) To date, no responses have been provided. (Id., ¶ 11.) As Defendant served Plaintiff with discovery requests and Plaintiff failed to provide responses, the motions are granted. Plaintiff is ordered to provide verified response without objections within 20 days of this order.

b.

Sanctions

Defendant

seeks \$1,060 in monetary sanctions against Plaintiff and her counsel. The Court relies on its knowledge and experience in determining the reasonable value of the legal services provided under the circumstances in this case, e.g., routine nature of the motion, concurrently filed motions, and lack of opposition. (In re Marriage of Huntington (1992) 10 Cal.App.4th 1513, 1524 [“When the trial court is informed of the extent and nature of the legal services rendered, it may rely on its own experience and knowledge in determining their reasonable value.”].) The Court has discretion to fix the amount of reasonable monetary sanctions. (Cornerstone Realty Advisors, LLC v. Summit Healthcare Reit, Inc. (2020) 56 Cal. App. 5th 771, 791.)

The

Court finds a reasonable award is 2 hours of attorney’s work at a rate of \$265 per hour.

Therefore,

the Court imposes sanctions of \$530 on Plaintiff and counsel of record, K. Christopher Ghahreman, jointly and severally, to be paid within 20 days of this order.

IV.

CONCLUSION

Defendant Matheson Tri-Gas, Inc.'s motion to compel Plaintiff Jessica Valdivia's responses to Requests for Production of Documents, Set One, is GRANTED. Jessica Valdivia is ordered to provide verified, code-compliant, objection-free responses within 20 days of the hearing on the motion.

Defendant Matheson Tri-Gas, Inc.'s request for sanctions is GRANTED. Jessica Valdivia and counsel K. Christopher Ghahreman are ordered to pay \$530 in sanctions to Matheson TriGas, Inc. within 20 days of the hearing on the motion.

Defendant is ordered to provide notice of this Order.

DATED:

July 14, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE TAKE NOTICE:

- If a party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.
- Unless all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

- If the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.

Superior Court of California

County of Los Angeles

Department 730

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JESSICA VALDIVIA,

Plaintiff,

vs.

JACQUELINE SUZETTE, et al.,

Defendants

Case No.:

24STCV06620

Hearing Date:

July 14, 2026

ORDER GRANTING UNOPPOSED MOTION TO DEEM REQUEST FOR ADMISSIONS ADMITTED

Having reviewed Defendant Matheson Tri-Gas, Inc.'s unopposed Motion to Deem Requests for Admission Admitted, the Court rules as follows.

On December 5, 2025, Defendant Matheson Tri-Gas, Inc. served Requests for Admission, Set No. One on Plaintiff Jessica Valdivia.

Responses were due February 26, 2026. Plaintiff Jessica Valdivia has failed to provide timely responses. Defendant Matheson Tri-Gas, Inc. now moves the Court to deem the requests for admission admitted. No opposition has been filed.

The Court grants the motion pursuant to Code of Civil Procedure section 2033.280 and deems the requests to be admitted.

Defendant Matheson Tri-Gas, Inc. requests monetary sanctions pursuant to sections 2033.030 (a) and 2033.280 (c) in the amount of \$1,060.00, based upon 4 hours of attorney's work at a rate of \$265.00 per hour, with 2 hours were spent drafting the motion and 2 hours are anticipated in reading and replying to any opposition. The Court finds the requested amount in sanctions unreasonable given this is an unopposed, routine discovery motion. (In re Marriage of Huntington (1992) 10 Cal.App.4th 1513, 1524 ["When the trial court is informed of the extent and nature of the legal services rendered, it may rely on its own experience and knowledge in determining their reasonable value."].) Instead, a more reasonable award is \$500.00, based upon 2 hours of attorney's work at a reasonable rate of \$265.00 per hour. Therefore, the Court imposes sanctions of \$530.00.

Therefore, the Court imposes sanctions totaling \$530.00 and are payable by Plaintiff Jessica Valdivia and her counsel by August 13, 2026.

DATED: July 14, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE TAKE NOTICE:

- Parties are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.
- If a party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.
- Unless all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.
- If the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.